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IN THE COURT OF APPEAL OF THE STATE OF
CALIFORNIA
FIRST APPELLATE DISTRICT
DIVISION THREE

APPELLATE CASE NO.: A173827

SUPERIOR COURT CASE NO.: CGC-21-594102

GARRETT L. WONG, TRIAL JUDGE PRESIDING

APPELLANT’S PETITION FOR REHEARING

California Rules of Court, rules 8.268, 8.204, and 8.500(c)(2)

Opinion filed September 10, 2026 (unpublished)

Panel: Rodríguez, J., Author; Fujisaki, Acting P.J., and Petrou,
J., Concurring

Franciscus Dylan Rosario
Plaintiff and Appellant (Self-Represented)

v.

Subhi Abdelhalim, et al.
dba SONOMA LIQUOR,
DOES 1-50

Defendants and Respondents

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QUESTION PRESENTED

Whether appellate review of a refusal to instruct a deliberating jury, which Code of Civil Procedure section 647 deems excepted to, is barred by a party's reported post-response statement that the jury "may not consider" two statutes "because it is not part of the instructions," where that stated reason presupposes the refusal to instruct rather than endorsing it, and where the reported colloquy shows no affirmative, deliberate tactical conduct inducing the refusal.

I. STATEMENT OF TIMELINESS AND PURPOSE OF PETITION

Pursuant to California Rules of Court, rule 8.268, subdivision (b)(1), this Petition for Rehearing is timely filed within 15 days of the filing of the Court's unpublished opinion on September 10, 2026.

Rule 8.500(c)(2) makes a petition for rehearing the vehicle by which a party calls to this Court's attention any alleged omission or misstatement of an issue or fact in the opinion. Appellant files this Petition for that preservation purpose and to ask the Court to reconsider its forfeiture holding on the record and authorities set out below. Appellant does not contend that the rule obliges the Court to answer or explain; rule 8.268(c) provides that a petition not ruled on before the decision is final is deemed denied.

Concurrently with this Petition, Appellant has filed a Motion for Mandatory Judicial Notice under Evidence Code sections 451, subdivision (a), and 452, subdivision (d), and California Rules of Court, rule 8.252, with a supporting Declaration and a Proposed Order. The motion asks the Court to notice the statutes discussed below and specified superior court records, including Jury Request Form No. 1. Attachment 1 to this Petition reproduces Jury Request Form No. 1 and the cited pages of Reporter's Transcript volume 11, which are copies of Exhibits B and C to that Declaration. (Cal. Rules of Court, rule 8.204(d).)

II. SUMMARY OF OPINION AND GROUNDS FOR REHEARING

Grounds for rehearing

This petition requests a modification of the unpublished opinion under rule 8.264(c) to correct three omissions of record fact and governing law. This Court can apply Code of Civil Procedure section 647 and *Lund* now. It need not reverse the judgment to do so. Requested modification under rule 8.264(c), without changing the judgment: (1) restore the omitted second sentence of Jury Request No. 1 ("If so could we be instructed on those provisions?"); (2) state that Code of Civil Procedure section 647 and *Lund v. San Joaquin Valley Railroad* (2003) 31 Cal.4th 1, 7, govern a refusal to instruct; (3) state that the reported colloquy occurred after the written response; and (4) identify whether any

agreement attached to the "may not consider" clause, the "will not instruct" clause, or both.

1. The opinion omits the second sentence of Jury Request No. 1. The opinion quotes only the first sentence of Jury Request No. 1, omitting the jury's explicit second sentence: *"If so could we be instructed on those provisions?"* (Super. Ct. doc. 09577565, p. 2; Rosario Decl., Ex. B.) The omitted sentence is a request for instruction. An order refusing that request is the order section 647 names.

2. The opinion places the cited statements after the response. The opinion relies on invited error, yet its own statement of facts places Appellant's statements *after* the court had already issued its written response. A reaction after the response cannot have induced that response. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 403.)

3. Section 647 and *Lund* are not cited. The opinion decides preservation with "forfeited" and "agreeing." Section 647 deems a refusal to instruct excepted to. *Lund* holds that no objection is necessary. (*Lund v. San Joaquin Valley Railroad* (2003) 31 Cal.4th 1, 7.) *Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455, states that decisions of the Supreme Court bind the Courts of Appeal. It does not require discussion of every cited case. It does mean the statute and *Lund* remain the default until this Court applies them or states why they do not reach this

record.

By omitting these facts, the opinion merges distinct doctrines: it applies forfeiture vocabulary to an estoppel analysis without satisfying the legal elements of either.

Record point	What the opinion recites	Complete record and preservation consequence
Complete Request No. 1	The jury asked whether it should consider sections 22107 and 21804(a).	The same form next asks, "If so could we be instructed on those provisions?" The omitted sentence identifies a refusal to instruct, an order section 647 deems excepted to.
Two-clause response	The parties agreed to the response.	The response states both "You may not consider" and "nor will the court instruct." Consent scope must be tested separately for the refusal clause.
Request No. 2 context	Not discussed.	Request No. 2 sought the definition of "vehicle"; the court supplied a Vehicle Code definition of vehicle and section 360's definition of "highway." (RT 11, p. 7, ll. 16-26.) The contrast bears on the court's "not part of the evidence" ground, not on categorical application of section 21804(a).

Record point	What the opinion recites	Complete record and preservation consequence
Complete reported statements	Rosario agreed and called the Vehicle Code "immaterial."	He said, "I do agree with the first one, the response to number one: You may not consider it because it is not part of the instructions," then addressed "the second one." Asked about an objection, he answered in one turn: "No. I have objection ..." (RT 11, p. 4, ll. 1-25.) Those statements must be read for their object and scope.
Trial court characterization and stated ground	Not discussed.	The court stated waiver based on non-objection, later used "acquiescence," and explained that the statutes were "not part of the evidence." (RT 11, p. 6, ll. 16-22; p. 7, ll. 4-9; p. 10, ll. 9-19.) Those statements separate preservation from the unaddressed merits.
Asserted Bar	Legal Standard	Why It Fails on This Record
Forfeiture (by non-objection)	Failure to make the timely assertion of a right (<i>Saunders</i>).	Statutorily inapplicable. Section 647 deems a refusal to instruct excepted to (<i>Lund</i> , 31 Cal.4th at p. 7).
Waiver	Clear, convincing evidence of intentional relinquishment of a known right (<i>City of Ukiah v. Fones</i> (1966) 64 Cal.2d 104, 107).	Appellant uttered a qualified "No"; the trial court found mere "acquiescence".

Asserted Bar	Legal Standard	Why It Fails on This Record
Invited Error (estoppel)	Affirmative conduct that induced the ruling as a deliberate tactic (<i>Mary M. Norgart</i>).	Appellant's statements came <i>after</i> the court issued its response (<i>Huffman; Pappert</i>).

Register of errors presented for rehearing

Rule 8.500(c)(2) makes rehearing the vehicle for an alleged omission or misstatement of issue or fact. Each entry states one.

1. **The jury's express request to be instructed is omitted.** The opinion quotes the first sentence of Jury Request No. 1, not the second, which asked to "be instructed on those provisions." The ruling under review is therefore a refusal to instruct, not an evidentiary ruling.
2. **Section 647 and *Lund* are not addressed.** Section 647 deems an order "refusing to give an instruction" excepted to, and *Lund* holds that no objection is necessary to preserve the challenge. (Code Civ. Proc., § 647; *Lund*, supra, 31 Cal.4th at p. 7; *Cook v. Los Angeles Railway Corp.* (1939) 13 Cal.2d 591, 593-594.) A Court of Appeal decision does not displace a statute or Supreme Court authority. (*Auto Equity Sales, Inc. v. Superior Court* (1962) 57 Cal.2d 450, 455; Part III.A.2, post.) The opinion uses "forfeited" / "agreeing" without applying the statute that eliminates non-objection.

3. **Disregard of the strict invited-error standard and chronological sequence.** The opinion treats post-response "agreement" as invited error without identifying affirmative conduct that induced the no-instruction clause. Its own statement of facts places the colloquy *after* the court issued its response. Acquiescence in a completed ruling does not constitute deliberate tactical inducement. (*Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 212-213; *Huffman v. Interstate Brands Corp.* (2004) 121 Cal.App.4th 679, 705-706.) The trial court's own word for the conduct was "acquiescence" (RT 11, p. 10, l. 16). The same post-response statements are the ones the opinion reads as inducement.
4. **The record source of the asserted agreement is not identified.** The opinion does not state whether the asserted agreement rests on the reported post-response colloquy or on the unreported pre-delivery conference.
5. **Two response clauses are collapsed into one object of consent.** The only reported agreement is to "the first one," for the stated reason that the statutes were "not part of the instructions" (RT 11, p. 4, ll. 8-10). The second clause, the refusal to instruct, is what sections 614 and 647 reach. The opinion treats that agreement as agreement to both clauses.
6. **Unresolved rule 8.137 record settlement request.**

Appellant invoked California Rules of Court, rule 8.137, and asked that the record be corrected or supplemented as to the unreported pre-delivery conference; the objections were overruled. (RT 11, p. 10, l. 23 to p. 12, l. 4.)

7. **Section 614 merits and *Soule* prejudice are unad-dressed.** The trial court refused the turn and yielding statutes requested in Request No. 1 because they were not "part of the evidence." (RT 11, p. 7, ll. 4-9.) Statutes are law, not evidence. (Evid. Code, §§ 140, 310, subd. (a), 451, subd. (a).) In answering Request No. 2, the same ruling supplied Vehicle Code definitions of "vehicle" and section 360 "highway" to the same jury. (RT 11, p. 7, ll. 16-26.) Section 614 and *Cook* require an accurate, legally appropriate answer. (*Cook*, supra, 13 Cal.2d at pp. 594-595; Part III.C, post.) The jury asked by number for the standard governing the turn, and negligence was answered "No" by nine of twelve jurors. (RT 11, p. 15, ll. 12-17; p. 16, ll. 4-7; *Soule v. General Motors Corp.* (1994) 8 Cal.4th 548, 570-571, 580-581; Part III.D, post.)
8. **Capacity under Civil Code section 3513 and *Bibb* is pleaded only if sufficient consent is found.** If the Court finds consent to the no-instruction clause, that consent would not convert the jury's request for the governing turn statute into a matter of party release. (Evid. Code, §

310, subd. (a); Civ. Code, § 3513; *San Francisco Lumber Co. v. Bibb* (1903) 139 Cal. 325, 326; Part III.E, post.)

III. ARGUMENT

A. THE OPINION'S SOLE DISPOSITIVE HOLDING IS CONSENT-BASED FORFEITURE, BUT THE REPORTED COLLOQUY DOES NOT SUPPORT IT

1. What the opinion decided and left undecided

The opinion disposes of the appeal on a single ground: "Rosario forfeited his claim by agreeing to the trial court's response to the jury's question." It cites *Bohana* for the proposition that where an appellant "consents to the trial court's response to jury questions during deliberations, any claim of error with respect thereto is waived," and it adds *Mary M.* and *Stevens*, supra, 49 Cal.App.4th at page 1653, for the general invited-error rule. Because of that holding, the opinion does not decide whether the response complied with section 614 and does not evaluate prejudice. No alternative ground is stated.

2. Section 647, Lund, and the limited Cook preservation application

Code of Civil Procedure section 647 provides that an order "refusing to give an instruction" is "deemed excepted to." In *Lund*, the Supreme Court held that a party "may ... challenge on appeal an erroneous instruction without objecting at trial" and that "[n]o

objection was necessary to preserve this claim." (*Lund*, supra, 31 Cal.4th at p. 7.) A forfeiture holding therefore cannot rest solely on a failure to object. *Lund* also holds that a correct but incomplete instruction requires a requested clarification before its incompleteness may be raised on appeal. (Ibid.) The response here was not incomplete; it affirmatively told the jury it "may not consider" the statutes and that the court would not instruct on them. Section 647 reaches both acts: it deems excepted to the "giving [of] an instruction" and the "refusing to give an instruction." (Code Civ. Proc., § 647; *Huffman*, supra, 121 Cal.App.4th at pp. 705-706 [quoting the statute].) The first clause of the response ("You may not consider ...") operated as an affirmative negative instruction on substantive law that had to be correct, not a mere incomplete charge requiring a request for clarification under *Lund*; the second clause ("nor will the court instruct ...") was the express refusal to instruct that section 647 names. (*People v. Beardslee* (1991) 53 Cal.3d 68, 97; *Flores v. Liu* (2021) 60 Cal.App.5th 278, 289.) The trial court's stated ground was a legal premise, not an incompleteness in an otherwise correct charge; Part III.C.2 addresses it. *Cook* applied section 647 to a supplemental charge given after the jury had retired and rejected the argument that the plaintiff, who "stood by without objection or complaint," was precluded from complaining of it. (*Cook*, supra, 13 Cal.2d at pp. 593-594.)

Section 647 does not abolish genuine invited error or waiver. A

party may still be barred if the record establishes affirmative, deliberate conduct that induced the challenged ruling, or if the record establishes intentional relinquishment of a known right. Those showings are assessed first on the reported record. A properly settled account of the unreported pre-delivery exchange matters only if that exchange is material, as Part III.B explains. The opinion does not address section 647, *Lund, Cook's* application of section 647 to a supplemental charge, or the civil preservation baseline those authorities establish. A Court of Appeal decision does not displace a statute or Supreme Court authority. (*Auto Equity*, supra, 57 Cal.2d at p. 455.)

3. The reported chronology and the source-of-agreement fork

The opinion's own statement of facts places the sequence: "After the court issued its response to the jury, Rosario moved for a mistrial." The reported hearing convened on Jury Request No. 3, with Requests No. 1 and No. 2 already answered. (RT 11, p. 3, ll. 5-11.) The mistrial motion came next. (RT 11, p. 3, ll. 12-22.) The statements in the reported colloquy followed the mistrial motion. (RT 11, p. 4, ll. 1-14, 15-25.) The court's written response to Request No. 1 bears a 10:37 a.m. written-response notation on the form itself. (Super. Ct. doc. 09577565, p. 2; Rosario Decl., Ex. B.) The earlier pre-delivery conference is not reported, and no properly settled account of it exists, as Part III.B explains.

That chronology creates a source-of-agreement fork. The reported post-response colloquy must be analyzed for consent scope and for inducement separately. Timing bears on inducement: a reaction after the court's response shows at most acquiescence in a completed ruling and cannot itself have induced formulation of that earlier response. (*Norgart*, supra, 21 Cal.4th at p. 403.) Scope and intent bear on actual consent: whether Appellant intentionally relinquished the instructional claim and to which clause any agreement attached. The reported colloquy does not itself establish the physical delivery time of the written response. If the Court treats the unreported pre-delivery conference as the source of consent, no properly settled account of that conference exists, and it is the subject of the conditional request in Part III.B.

4. The two-clause scope of any actual consent

The opinion characterizes Appellant's position as treating the Vehicle Code as "immaterial" and as grounds for a mistrial. The transcript shows a narrower position.

The mistrial motion was a juror-misconduct motion directed at outside information: "I have reason to believe that one or more of the jurors accessed or relied on outside information -- specifically vehicle codes, which is immaterial -- which was not introduced into evidence." (RT 11, p. 3, ll. 12-22.)

The opinion reads that sentence as a position that "the Vehicle

Code was 'immaterial.'" The quote is limited to outside Vehicle Code text "which was not introduced into evidence." It is not a statement that section 22107 is immaterial as court-given law.

The same reported turn distinguished the two requests: the court had "clarified something to the Jury by submitting a actual Vehicle Code," Appellant said, and "when you added that into the second one, it caused this." (RT 11, p. 4, ll. 1-14.) His later rule 8.137 objection likewise identified "the citation on what constitutes a vehicle." (RT 11, p. 10, l. 23 to p. 11, l. 7.) In context, "the first one" most likely distinguishes Request No. 1 from Request No. 2.

Within Request No. 1, Appellant addressed only the first clause: "I do agree with the first one, the response to number one: You may not consider it because it is not part of the instructions." (RT 11, p. 4, ll. 8-10.) The written response separately contains the distinct refusal: "nor will the court instruct the jury on those provisions." (Super. Ct. doc. 09577565, p. 2.) Appellant never repeated or endorsed that second clause. His stated reason, that the code was not part of the instructions, merely stated a correct source-of-law premise: jurors cannot apply uninstructed law. Treating that premise as consent to the court's refusal to instruct bridges a gap the transcript leaves open.

The court then asked, "So you don't have an objection to the instruction given in response to Jury request number one?"

"MR. ROSARIO: No. I have objection to the fact they were accessing or requesting all of them anyways. But in number one, you know, I understand what's going on here. They should not have been accessing external information or requesting Vehicle Code sections that were not presented during the trial in view of the evidence." (RT 11, p. 4, ll. 15-25.)

"No" and "I have objection" are one reported speaker turn. The remainder repeats outside-access, not a request to withhold section 22107. The reported colloquy must be assessed as a whole. If the earlier unreported conference is material to consent, Part III.B requests a settled account rather than an inference from silence.

Appellant does not deny the reported words "I do agree with the first one," "No," or "immaterial." He asks the Court to read each with the rest of the same speaker turn and with the two-clause response. Section 647 removes non-objection as a bar. It does not make a later, clear consent to the refusal-to-instruct clause legally irrelevant. The reported colloquy does not identify that consent.

5. Waiver by intentional relinquishment versus forfeiture by non-objection

Waiver is different from forfeiture. Whereas forfeiture is the failure to make the timely assertion of a right, waiver is the "intentional relinquishment or abandonment of a known right." (*People*

v. Saunders (1993) 5 Cal.4th 580, 590, fn. 6.) Forfeiture for failure to object is governed by section 647 and *Lund*, which remove the objection requirement for a refusal to instruct. Waiver, by contrast, "always rests upon intent" and must be established by clear and convincing evidence rather than speculation. (*City of Ukiah v. Fones* (1966) 64 Cal.2d 104, 107-108.) The trial court said, "You've waived that request," after stating that Appellant "did not object to the language" (RT 11, p. 6, ll. 16-22), and later used "acquiescence" (RT 11, p. 10, l. 16). To the extent those findings rest on non-objection, section 647 controls. To the extent they rest on actual consent, the distinct object and intent of the reported statement remain to be identified.

6. Invited error and the absence of deliberate tactical inducement

The Supreme Court has confined invited error to cases in which the record shows that the party, by affirmative conduct, induced the error as a deliberate tactical choice. In *Mary M.*, the City objected to a special instruction, received an adverse ruling, and then acquiesced in the trial court's ruling; the Court held that acquiescence after an adverse ruling is not invited error. (*Mary M.*, supra, 54 Cal.3d at pp. 212-213.) In *Norgart*, the Court explained that the doctrine guards against a party misleading the trial court and then profiting from the error on appeal. (*Norgart*, supra, 21 Cal.4th at p. 403.) In *Wickersham*, the Court held that the record must show an expressed tactical purpose before a party

will be charged with inviting an instructional error. (*Wickersham*, supra, 32 Cal.3d at p. 333.)

The Courts of Appeal apply the same standard in civil instructional cases. *Pappert* states that mere failure to object, or even express acceptance of an incorrect instruction, is insufficient absent a deliberate tactical purpose. (*Pappert*, supra, 137 Cal.App.3d at pp. 212-213 & fn. 3.) *Huffman* holds that withdrawal of an objection did not establish the affirmative tactical conduct required for invited error. (*Huffman*, supra, 121 Cal.App.4th at pp. 705-706.)

Section 647 does not eliminate contrary consent records. *Ventura v. ABM Industries Inc.* (2012) 212 Cal.App.4th 258, 271, held that section 647 did not negate invited error where the defendants affirmatively agreed an instruction "covered all the elements." *People v. Salazar* (2016) 63 Cal.4th 214, 248-249, held that counsel's approval of a proposed jury-note response forfeited error where the endorsement preceded the response and foreclosed further exploration even though the answer was not responsive.

Appellant bears the burden to present a record sufficient to establish that claimed instructional error was not invited when the source of the instruction is unclear. (*Faulk v. Soberanes* (1961) 56 Cal.2d 466, 471; *Lynch v. Birdwell* (1955) 44 Cal.2d 839, 846-847.) Here the written response and reported colloquy are in the record, but the earlier conference is not. The reported colloquy

contains no proposal of the no-instruction clause or expressed tactical purpose. The opinion places it after the response, and the court later called the conduct acquiescence. If the unreported conference supplies the dispositive agreement, its content cannot be inferred either way from silence; Part III.B conditionally requests settlement. On the reported record, Appellant submits that *Mary M., Huffman, Ventura, and Salazar* require identification of the affirmative statement or conduct that attached to the separate refusal clause.

7. Fact-specific comparison to *Bohana*, *Rodrigues*, and *Stevens*

Bohana's cited analysis arose under Penal Code section 1138; it does not itself decide the civil preservation effect of Code of Civil Procedure section 647. There, defense counsel had expressly opposed an involuntary-manslaughter instruction for stated tactical reasons. When the jury later asked whether manslaughter was available, the court relied on that objection in formulating its answer, and counsel consented. (*Bohana*, supra, 84 Cal.App.4th at pp. 372-373.) *Rodrigues* found waiver where the defendant suggested the court's response and consented before it was given. (*People v. Rodrigues* (1994) 8 Cal.4th 1060, 1193-1194.) The following comparison is factual, not a claim that every feature is a formal, cumulative prerequisite to invited error.

Bar	Required showing	This record
Forfeiture	Non-objection	§ 647 removes it

Bar	Required showing	This record
Waiver	Intentional relinquishment	Qualified "No"; "acquiescence"
Invited error	Induced the ruling	Statements after the response
<i>Bohana-Rodrigues-Stevens</i>	Consent to a party-requested, suggested, or already-opposed answer	Reported colloquy does not identify Appellant as the source of the refusal clause

Bohana therefore controls this appeal only if the Court finds, on the reported record or in a properly settled account, comparable affirmative consent to the challenged refusal. The reported record does not identify Appellant as the source of that clause.

Stevens, as the opinion quotes it, "bars an appellant from attacking a verdict that resulted from a jury instruction given at the appellant's request." The reported transcript identifies no request by Appellant for the response the court gave. The court described its own presentation-and-delivery process. (RT 11, p. 6, ll. 16-22.) *Mary M.* distinguishes between language a party drafted and acquiescence after an adverse ruling. (*Mary M.*, supra, 54 Cal.3d at pp. 212-213.) The earlier conference remains the only unreported source of a possible contrary showing.

Appellant does not ask the Court to overrule *Bohana* or contend that consent can never waive a claim of error in a supplemental instruction. The resulting question is what basis in the reported record supports treating Appellant's post-response state-

ment as deliberate consent to the distinct no-instruction clause before *Bohana* is used to resolve the remaining preservation, merits, and prejudice questions. If the Court treats the unreported conference as material to that inquiry, no properly settled account of it exists, and Part III.B requests limited settlement.

B. THE UNREPORTED PRE-DELIVERY CONFERENCE IS DISPUTED; IF IT IS MATERIAL, THE COURT SHOULD DIRECT LIMITED SETTLEMENT UNDER RULE 8.155(c)(2)

The opinion states that the response was given "[w]ith the agreement of the parties." The reporter's transcript contains no account of the pre-delivery conference. It records the trial court's later assertion that it "presented that response in Jury request number one to each party before delivering it to the Jury" and that Appellant had "waived that request." (RT 11, p. 6, ll. 16-22.) No transcript records the conference, the language presented, what each party said, or whether anyone expressed a reason for withholding the statutes.

Appellant disputed the no-objection characterization the same afternoon. He stated on the record that "outside the presence of the Court Reporter, Plaintiff did object to any language or materials sent back," that "the record does not reflect the Reporter's absence," and he requested under rule 8.137 that the record "be

corrected or supplemented," adding, "I would like to either reconstruct the record or we file my objection for that." (RT 11, p. 10, l. 23 to p. 11, l. 13.) The court responded, "Well, your objection is noted. What's the correction?" (RT 11, p. 11, l. 14.) It then noted the objections and overruled them as "within its discretion." (RT 11, p. 11, l. 28 to p. 12, l. 4.) No properly settled account of the unreported conference was prepared.

Appellant's concurrently filed Declaration sets out his recollection of the conference: that he asked the court to give the jury the turning and yielding duties named in Jury Request No. 1, that the court declined because it considered those statutes outside the evidence, and that he objected to withholding the governing law. The trial court's on-the-record characterization differs from that account, and the account is disputed. Appellant does not ask the Court to accept his recollection as established fact or to take judicial notice of its truth. He identifies it as a disputed account of an unreported proceeding.

The reported record must be assessed first on its own terms; transcript silence regarding the pre-delivery conference does not establish consent. The opinion places the reported statements after the ruling, and the trial court labeled the posture "acquiescence." (RT 11, p. 10, l. 16.) If the Court treats the unreported conference as the dispositive source of agreement, no properly settled account exists. Rules 8.155(c)(1) and (c)(2) authorize an order

directing the superior court to settle disputes about omissions or errors. Appellant requests that relief in the alternative.

C. ON THE MERITS, THE RESPONSE WAS NOT A LEGALLY APPROPRIATE ANSWER UNDER SECTION 614 AND COOK, AND THE TRIAL COURT'S STATED GROUND WAS A CATEGORY ERROR

Because the opinion rests on forfeiture, it does not reach the merits. Appellant summarizes them so that the Court may evaluate whether rehearing would affect the result.

1. Section 614 and Cook require an accurate and legally appropriate response to a reasonable request on a doubtful point

The opinion cites *Hurley v. California Department of Parks and Recreation* (2018) 20 Cal.App.5th 634, 655, for the rule requiring civil litigants to propose instructions. *Hurley* addresses trial-stage instructions governed by Code of Civil Procedure section 607a. It does not control post-submission inquiries under section 614, which mandates an appropriate response when a deliberating jury requests information on a point of law.

Section 614 provides that when deliberating jurors "desire to be informed of any point of law arising in the cause," they are to be brought into court and "the information required must be given in the presence of, or after notice to, the parties or coun-

sel." *Cook* construes the section. It holds that section 614 does not require the court to give the jury every item it asks for, but that a reasonable request for information on a point about which the jury is in doubt should not be willfully disregarded. (*Cook*, supra, 13 Cal.2d at pp. 594-595.) *Davis v. Erickson* (1960) 53 Cal.2d 860, 863-864, likewise treated a jury's request for all negligence instructions as proper under section 614 and held the incomplete rereading prejudicial. The Supreme Court has also explained that a court must at least consider how best to aid a questioning jury. (*Beardslee*, supra, 53 Cal.3d at p. 97.) The opinion itself recognizes that when "the jury asks questions indicating their confusion and need for further explanation, failure to give proper additional instructions is usually reversible error." (Quoting *Sesler v. Ghumman* (1990) 219 Cal.App.3d 218, 227.)

Appellant does not contend that the court was bound to read the jury every statute it named. He contends that the request here was reasonable and specific, that it asked whether the negligence question should be evaluated under the right-turn statute, and that the court's response was not an accurate and legally appropriate answer. The jury asked two things: whether it should consider sections 22107 and 21804(a), and, if so, whether it could be instructed on them. The response answered the first question "no" without any legal basis for that answer, and it foreclosed the second.

2. The trial court's stated ground, that the statutes were "not part of the evidence," treated law as evidence

The court explained its response on the record: "neither Vehicle Codes Section 22107 nor 21804 subdivision A were part of the evidence. They simply are not permitted to consider that as evidence in the case, period." (RT 11, p. 7, ll. 4-9.) That reasoning treats a statute as an item of proof that must be admitted before the jury may apply it. Statutes are not evidence. Evidence is testimony, writings, material objects, or other things presented to the senses to prove a fact. (Evid. Code, § 140.) The public statutory law of this state is law, of which judicial notice "shall be taken" (Evid. Code, § 451, subd. (a)), and questions of law "are to be decided by the court, and not by the jury" (Evid. Code, § 310, subd. (a)). Whether section 22107 governed defendant's turn was a question of law for the court to answer by instruction. It did not depend on whether any exhibit contained the statute's text.

The same ruling shows that the court did not apply its stated ground consistently. Jury Request No. 1 concerned sections 22107 and 21804(a); Jury Request No. 2 requested the definition of "vehicle." The court answered Request No. 2 with section 360 (RT 11, p. 7, ll. 16-26), describing that act as possibly "gratuitous on the part of the Court" (RT 11, p. 7, l. 27 to p. 8, l. 6). Those definitions were no more "part of the evidence" than section 22107.

The opinion states that a decision whether to instruct a deliberating jury is reviewed for abuse of discretion. But "when a trial court's decision rests on an error of law, that decision is an abuse of discretion." (*People v. Superior Court (Humberto S.)* (2008) 43 Cal.4th 737, 742, 746.) The premise here, that a statute may not be given because it was not admitted as evidence, is erroneous under Evidence Code sections 140, 310, and 451.

3. Vehicle Code section 22107 governed the turn

Section 22107 provides that no person shall turn a vehicle from a direct course or move right or left upon a roadway until the movement can be made with reasonable safety, and then only after giving an appropriate signal if any other vehicle may be affected. *Butigan v. Yellow Cab Co.* (1958) 49 Cal.2d 652, 656, construed former section 544, the predecessor of section 22107, to require reasonable care rather than guaranteed safety, with breach normally a question of fact. Section 22107 states the specific legislative standard of care for a turning vehicle. An unexcused violation of that turning statute is a presumption of failure to exercise due care. (Evid. Code, § 669; *Satterlee v. Orange Glenn School Dist.* (1947) 29 Cal.2d 581, 589; *Alarid v. Vanier* (1958) 50 Cal.2d 617, 621.) Appellant does not ask this Court to decide excuse or rebuttal. Ordering the jury that it "may not consider" section 22107 withdrew the presumptive measure of negligence from a case centered on a right-hand turn across Appellant's line of travel. The case tried was whether defendant was negligent in

executing a right-hand turn across Appellant's line of travel. The jury received only general negligence instructions and then asked, by number, whether it should consider the statute. Evidence that Appellant was traveling against the flow of traffic, which the opinion notes, bears on comparative fault and causation; it does not make section 22107 categorically inapplicable.

Appellant focuses this Petition on section 22107 and does not ask the Court to hold that section 21804, subdivision (a), was required on this record. *Spriesterbach v. Holland* (2013) 215 Cal.App.4th 255, 267-268, does not establish otherwise: the jury there received section 21804 and reasonable-care instructions, and the court found only the omitted negligence-per-se instruction harmless. Section 21804(a) remains location-dependent and record-dependent here.

D. PREJUDICE UNDER SOULE AND THE 9 TO 3 VERDICT

Under article VI, section 13 of the California Constitution, *People v. Watson* (1956) 46 Cal.2d 818, 836, and *Soule*, supra, 8 Cal.4th at pages 570-571, 580-581, instructional error is prejudicial where it is reasonably probable that a result more favorable to the appealing party would have been reached in the absence of the error. The *Soule* factors are the state of the evidence, the effect of other instructions, the effect of counsel's arguments, and

any indications by the jury itself that it was misled, with the closeness of the verdict as a further consideration.

The opinion cites *People v. Mora and Rangel* (2018) 5 Cal.5th 442, 505, after stating that forfeiture made harmless unnecessary. Page 505 addresses an acknowledged tactical voir dire decision and related evidence; it does not establish civil forfeiture under section 647. Whether prejudice may be skipped here therefore still depends on a valid preservation bar.

1. **State of the evidence.** The collision occurred when defendant turned right across Appellant's path of travel, the movement section 22107 governs.
2. **Effect of other instructions.** The jury received general reasonable-care instructions and no instruction on the statutory duty for the turn. The response then told the jury the statute was off limits.
3. **Indications from the jury.** The jury asked, in writing and by number, whether it should consider section 22107 and whether it could be instructed on it. A written request for the withheld law is the clearest indication a jury can give that the omission mattered to its deliberations.
4. **Closeness of the verdict.** The verdict was nine to three, the minimum a civil verdict requires. (RT 11, p. 15, ll. 12-17; p. 16, ll. 4-7.) "The fact that only the bare number

of jurors required to reach a verdict agreed upon the verdict for defendants lends further support to the probability that the erroneous instruction was the factor which tipped the scales in defendants' favor." (*Robinson v. Cable* (1961) 55 Cal.2d 425, 428; quoted in *LeMons v. Regents of University of California* (1978) 21 Cal.3d 869, 877.) *LeMons* lists the closeness of the verdict among the factors for measuring prejudice, together with the jury's requests during deliberations (*id.* at p. 876), and holds that "[e]ven if only one of the nine jurors who supported the verdict voted on this basis, the effect was prejudicial." (*Id.* at p. 877.)

Had the jury been correctly instructed on section 22107's turning standard, it is reasonably probable under *Soule* and *Watson* that at least one of the nine jurors who voted for the defense would have reached a different result.

E. ALTERNATIVELY, THE SECTION 614 DUTY IS NOT ONE A PARTY CAN RELEASE

This ground is pleaded only if the Court finds consent to the no-instruction clause; the Petition does not depend on it. Section 614 places the right to be informed with the deliberating jury and the duty with the court, and Evidence Code section 310, subdivision (a), commits questions of law to the court, so a party's consent would not convert the jury's request for the governing turn statute

into a matter of party release. (Civ. Code, § 3513; *San Francisco Lumber Co. v. Bibb* (1903) 139 Cal. 325, 326.)

IV. CONCLUSION AND PRAYER FOR RELIEF

For the foregoing reasons, Appellant respectfully requests that this Court:

1. Modify its unpublished opinion under California Rules of Court, rule 8.264(c), to restore the omitted text of Jury Request No. 1, apply the mandatory Code of Civil Procedure section 647 preservation default, acknowledge the trial court's finding of "acquiescence," and reach the merits;
2. Distinguish, as applied to that identified source: (a) forfeiture for non-objection; (b) waiver by intentional relinquishment of a known right; and (c) invited error by deliberate tactical inducement;
3. Identify the clause of the written response to which any actual consent attached, addressing Code of Civil Procedure section 647, *Lund*, and the Request No. 2 statutory-definition context, and state whether any modification under rule 8.264(c) changes the appellate judgment as rule 8.264(c)(2) requires;
4. Request an answer from respondents under rule 8.268(b)(2) on the source-of-agreement, clause-scope, and doctrinal-basis questions set out above;

5. Direct limited settlement under California Rules of Court, rule 8.155(c)(2), so that a properly settled account of the unreported pre-delivery exchange exists, if the Court treats that exchange as material to forfeiture;
6. If no affirmative preservation bar displaces section 647, decide the section 614 merits and *Soule* prejudice questions left undecided by the opinion, and issue a new opinion reversing the judgment of the San Francisco Superior Court with directions for a new trial;
7. Reach the Civil Code section 3513 and *Bibb* capacity theory only if the Court first finds sufficient consent to the no-instruction clause; and
8. Grant Appellant's concurrently filed Motion for Mandatory Judicial Notice.

Respectfully submitted,

DATED: September 11, 2026



/s/

Franciscus Dylan Rosario
Plaintiff and Appellant in Pro Per
7624 Melody
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CERTIFICATE OF COMPLIANCE

I certify that this petition contains approximately **6586** words, excluding the cover page, table of contents, table of authorities, the signature block, this certificate, and any attachments, as counted by the word-processing program used to generate this petition. This petition complies with the word limit of California Rules of Court, rule 8.204(c)(5), as made applicable by rule 8.268(b)(3) (7,000 words for a petition for rehearing produced on a computer).

I further certify that this petition complies with the form requirements of California Rules of Court, rules 8.204(b) and 8.74, including: 14-point type in the body; line spacing of 1.5; left and right margins of 1.5 inches; top and bottom margins of 1 inch; at least 13-point type in tables; consecutive Arabic page numbering beginning with the cover as page 1; and electronic bookmarks.

DATED: September 11, 2026



/s/

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**IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
FIRST APPELLATE DISTRICT, DIVISION THREE**

FRANCISCUS DYLAN ROSARIO,
Plaintiff and Appellant,

v.

SUBHI ABDELHALIM et al.,
Defendants and Respondents.

Court of Appeal No. A173827
San Francisco Superior Court No. CGC-21-594102

ATTACHMENT 1 TO APPELLANT'S PETITION FOR REHEARING

[Cal. Rules of Court, rule 8.204(d), as made applicable by rule 8.268(b)(3)]

This attachment reproduces (1) Jury Request Form No. 1, Super. Ct. doc. 09577565, p. 2, and (2) Reporter's Transcript volume 11, pages 3 to 4, 6 to 7, and 10 to 12. These pages are copies of Exhibits B and C to the concurrently filed Declaration of Franciscus Dylan Rosario and are the subject of Appellant's concurrently filed Motion for Mandatory Judicial Notice. Attachment pages are excluded from the word count under rule 8.204(c)(3).

Total attachment pages: 9 (limit 10).

SUPERIOR COURT OF CALIFORNIA
County of San Francisco

Honorable GARRETT L. WONG, Judge Presiding
Department 504

FRANCISCUS DYLAN ROSARIO

PLAINTIFF

VS.

SUBHI ABDELHALIM et al

DEFENDANT

Case Number: CGC-21-594102

JURY REQUEST FORM # 1

WE, the Jury in the above-entitled action, request the following:

In considering the question of whether the defendant was negligent should we consider the provisions of Vehicle Code Sections 22107 and 21804(a). If so could we be instructed on those provisions?

This 23rd day of April, 2025

Time: 10:09

Presiding Juror

Douglas M Young

COURT Response:

You may not consider Vehicle Code sections 22107 and/or 21804(a) nor will the court instruct the jury on those provisions.

This 23rd day of April, 2025

Time: 10:37 A.M.

Hon. Garrett L. Wong
Judge of the Superior Court

1 April 23, 2025 San Francisco, California

2 PROCEEDINGS

3 THE BAILIFF: Come to order. Department 504
4 is now in session.

5 THE COURT: We are on the record. The record
6 should reflect that the parties are present along with
7 Counsel, and the Jury has issued a question to the
8 Court.

9 It is Jury request number three.

10 But before we deal with that, there is also a
11 motion for a mistrial?

12 MR. ROSARIO: Yes, Your Honor. I am
13 requesting a mistrial on the grounds of Juror
14 misconduct.

15 I have reason to believe that one or more of
16 the jurors accessed or relied on outside information
17 -- specifically vehicle codes, which is immaterial --
18 which was not introduced into evidence.

19 This undermines my rights of a fair trial and
20 violates the Court's instruction that the Jury must
21 decide the case solely on the evidence presented in
22 Court. I respectfully move for a mistrial.

23 MS. NAVARATNASINGHAM: Your Honor, we oppose
24 any request for mistrial.

25 There is no evidence whatsoever at this point
26 that the Jury even considered that information and the
27 Court instructed them not to consider that
28 information.

1 MR. ROSARIO: The Court also, through its own
2 admission, clarified something to the Jury by
3 submitting a actual Vehicle Code, which was not
4 introduced during the evidence, and by that cause
5 alone, Your Honor, you had inserted information into
6 the Jury which then -- by providing them information
7 that was not available in the evidence itself.

8 I do agree with the first one, the response
9 to number one: You may not consider it because it is
10 not part of the instructions.

11 But when you added that into the second one,
12 it caused this, because the Jury had to make the
13 decision based upon the available evidence that was
14 there.

15 THE COURT: I see. So you don't have an
16 objection to the instruction given in response to Jury
17 request number one?

18 MR. ROSARIO: No. I have objection to the
19 fact they were accessing or requesting all of them
20 anyways. But in number one, you know, I understand
21 what's going on here.

22 They should not have been accessing external
23 information or requesting Vehicle Code sections that
24 were not presented during the trial in view of the
25 evidence.

26 The second one, they asked something that
27 they did not have. And, again, that is information
28 that was not presented in the evidence and suddenly

1 question number one means that either somebody has
2 accessed external information specifically about
3 vehicle codes in order to clarify.

4 The Defense should have also -- if they
5 wanted to have those codes in there, they should have
6 provided them to the Jury. They did not.

7 Both of those facts prove there is extraneous
8 Juror misconduct of accessing external information
9 that severely prejudices my case.

10 THE COURT: All right. Is the matter
11 submitted?

12 MR. ROSARIO: Yeah. Thank you, Your Honor.

13 MS. NAVARATNASINGHAM: Yes.

14 THE COURT: All right. First, the motion for
15 a mistrial is denied.

16 With regard to Jury request form number one,
17 first of all, you did not object to the language that
18 was submitted to the Jury.

19 The Court presented that response in Jury
20 request number one to each party before delivering it
21 to the Jury.

22 You've waived that request, sir.

23 In that matter, with regard to Jury request
24 form number one, the Court answered: You may not
25 consider Vehicle Code Sections 22107 and or 21804
26 subdivision A, nor will the Court instruct the Jury on
27 those provisions.

28 That is a sufficient instruction for the Jury

1 to abide by.

2 There has been no evidence that the Jury has
3 considered that as a part of its deliberations.

4 Further, I will point out -- I don't think I
5 needed to point this out -- but neither Vehicle Codes
6 Section 22107 nor 21804 subdivision A were part of the
7 evidence.

8 They simply are not permitted to consider
9 that as evidence in the case, period.

10 Now turning to Jury request form number two,
11 the relevant request here from the Jury, in pertinent
12 part, "Is there a relevant legal definition of
13 'vehicle?', close quote" that we should consider in
14 assessing this testimony?"

15 Question.

16 Answer: Vehicle Code Section provides,
17 quote, "a vehicle is a device by which any person or
18 property may be propelled, moved or drawn upon a
19 highway excepting a device moved exclusively by human
20 power or used exclusively upon stationery rails or
21 tracks."

22 Vehicle Code Section 360 defines "highway"
23 as: "A way or place of whatever nature publicly
24 maintained and open to the use of the public for
25 purposes of vehicle travel. 'Highway' includes
26 street," close quote.

27 The Court -- even if this was something that
28 was gratuitous on the part of the Court, the Court is

1 THE COURT: We are back on the record. And
2 the record should reflect that we have all parties
3 present along with Counsel.

4 And I have been informed by my courtroom
5 clerk that Mr. Rosario seeks to have his objections as
6 to Jury request number -- form number one and number
7 two placed on the record.

8 MR. ROSARIO: Yes.

9 THE COURT: The Court will indicate even
10 though -- well, I will simply point out there was no
11 objection raised at the time that we completed --

12 MR. ROSARIO: That wasn't our understanding.

13 THE COURT: Excuse me, sir.

14 That there was no objection entered as to the
15 answer to Jury request number one or to Jury request
16 number two; that, in fact, there was a acquiescence by
17 you, Mr. Rosario, based on the fact that some of this,
18 as you put it, was somewhat common knowledge to
19 everyone.

20 So you may certainly put your objection down
21 as to each of these responses to the Jury for the
22 record. Go ahead.

23 MR. ROSARIO: Right. So pursuant to
24 California Rules of Court 8.137, the Plaintiff objects
25 to Court statement that no objection was made to the
26 Jury instructions.

27 Given that outside the presence of the
28 Court Reporter, Plaintiff did object to any language

1 or materials sent back because the information was
2 already common knowledge, was unnecessary to be
3 defined, specifically also the one that was defined by
4 yourself to the Jury themselves.

5 The citation on -- more specifically, the
6 citation on what constitutes a vehicle, I did object
7 to that, and that is inaccurate also.

8 So -- but the record does not reflect the
9 Reporter's absence.

10 So Plaintiff requests the record be corrected
11 or supplemented pursuant to the Code of 8.137.

12 I would like to either reconstruct the record
13 or we file my objection for that.

14 THE COURT: Well, your objection is noted.
15 What's the correction?

16 MR. ROSARIO: The correction is that I
17 objected to any of the material going back, the codes,
18 because they were common knowledge; it wasn't
19 necessary for anything to be sent back to the Jury,
20 anything, any kind of clarification of vehicles,
21 anything like that. It was unnecessary.

22 I stated that. It was all common knowledge.

23 THE COURT: Very well. Your objection's
24 noted.

25 Anything further?

26 MS. NAVARATNASINGHAM: I have nothing to add,
27 Your Honor, to what Your Honor said.

28 THE COURT: All right. Your objections are

1 noted. They are overruled and the Court believes that
2 this is within its discretion to issue these responses
3 in order to clarify for the Jury some issues that they
4 have raised by way of their requests.

5 MR. ROSARIO: So at this point, we are
6 reconsidering on motion -- or on the questions in
7 number one, based upon the fact that there is evidence
8 of external extemporaneous access. This is a second
9 chance here.

10 Again, we are requesting for the mistrial,
11 stating that we feel there is an objection to that.
12 And as of our time right now, we are again
13 reconsidering for the objection that the
14 extemporaneous information about vehicle codes shows
15 that there is evidence and prejudice against the
16 Plaintiff's position based upon external research.

17 We are, again, objecting. We feel that there
18 is absolutely one hundred percent evidence of
19 extemporaneous Juror misconduct on the record, on the
20 record this time.

21 THE COURT: Very well. It is overruled.
22 Anything further?

23 MR. ROSARIO: I guess that is it.
24 Does that settle the record?

25 THE COURT: I think so. Anything else?

26 MR. ROSARIO: Yeah. We believe that --

27 THE COURT: No, sir. You have already
28 provided the Court and submitted your arguments to